

PR-23-000289 IN THE MATTER OF THE MACHADO FAMILY CREDIT BYPASS TRUST – Petitioner’s Motion for Consolidation of Trials of Related Actions - CONTINUED to July 30, 2026, at 8:30 am in Department 22.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: Because of the late filing of the opposition and reply, and because the filing of the First Amended Complaint in the civil case is still in flux (with a related hearing now set for July 8, 2026, at 8:30 am in Department 21), the Court CONTINUES this matter on its own motion to July 30, 2026, at 8:30 am in Department 22. This is the second (or third?) motion to consolidate trial that the moving party has filed in this case. The last motion was denied on 5/14/26 for a procedural defect. But I will forward you and Kim the prior email in a moment to remind you of the dispute. The opposition to this motion was late-filed on 6/29/26, the day that the reply was due, and AFTER the moving party filed a notice of non-opposition. The opposing party states that they missed calendaring the opposition because there have been several motions filed and withdrawn, and they experienced some confusion that caused them to overlook this. I am assuming the moving party is going to late-file a reply, but as of the time I am sending this, there is no reply showing in the court file. That is why I have highlighted “and reply” above. If the moving party does not file one before the hearing date, I recommend taking out this phrase and stating instead that the moving party may file and serve a reply by no later than July 23, 2026. Since the denial of the motion heard on 5/14/26, the procedural posture of the civil case has changed somewhat. Judge Mayne granted permission for the filing of a FAC, but he conditioned it on a payment of fees and costs. There has been a dispute over the order, and Judge Mayne just set the matter for a further hearing on 7/8/26. Because the conditions have not been clarified, the FAC has not been filed into the case yet. Until it is officially on file, I can’t really do a substantive analysis reviewing the civil pleading and comparing it to the pleading in the probate case. For the above reasons, I am recommending this continuance to July 30. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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